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Case Number: 18SMCV00115 Hearing Date: July 17, 2026 Dept: P

Tentative

Ruling

Jonathan

Baker, et al. v. Maree, Inc., et al., Case No. 18SMCV00115

Erica

Gleaton's Motion for Judgment on the Pleadings

Hearing

Date: July 17, 2026

Background

This is a

dispute over a home improvement contract between Plaintiffs Jonathan Banker and Jenny Ljungberg Baker (collectively, "the Bakers") and Defendants Maree, Inc., Maree Interiors, Inc., (collectively, "Maree") and Erica Gleaton ("Gleaton").

On October

26, 2018, the Bakers filed the initial complaint.

On January

30, 2019, the Bakers filed the First Amended Complaint ("FAC").

On August

9, 2019, the Court overruled Defendant's demurrer to the FAC.

On June

12, 2026, Gleaton filed this Motion for Judgment on the Pleadings. On July 6, 2026, the Bakers filed opposition. On July 8, 2026, Gleaton filed a reply.

Arguments

Gleaton

argues that the FAC fails to state a claim against Gleaton because it does not allege that she is Maree's alter ego and does not specifically describe what misrepresentations Gleaton allegedly made to the Bakers. (MJOP, p. 7.) Gleaton argues that Plaintiffs' second cause of action is not brought against her, and that she is not liable because she is not an alter ego of Maree. (Id. at p. 8-9.) Gleaton argues that the FAC fails to state a claim for negligence because it does not allege facts showing that she owed the Bakers any duty as an individual. (Id. at p. 9.) Finally, Gleaton argues that leave to amend would be futile because no facts suggest that Gleaton acted outside of her corporate role at Maree. (Id. at p. 10.)

In

opposition, the Bakers argue that Gleaton's individual tort liability does not depend on alter ego allegations, but rather on individual liability for her own tortious conduct. (Opposition, p. 9.) The Bakers argue that they plead fraud against Gleaton with specificity. (Id. at p. 10-12.) The Bakers argue that they are not required to allege that Gleaton was a party to the oral contract with Maree in order to maintain separate tort claims against her. (Id. at p. 12-13.) The Bakers argue that the FAC states a claim for negligence against Gleaton because it alleges Gleason's personal participation in the alleged tortious conduct. (Id. at p. 14.) The Bakers ask for leave to amend if the Court grants Gleaton's motion. (Id. at p. 15.)

In reply,

Gleaton argues that the Bakers do not address her central argument, that the FAC does not state a claim against her as an individual. Gleaton concedes that a corporate officer may be held personally liable for torts in which she personally participates but argues that the complaint does not allege facts showing that Gleaton personally participated in the alleged fraud and negligence. Gleaton argues that Plaintiffs have not shown a reasonable basis for amendment. (Reply, p. 7.)

Motion

for Judgment on the Pleadings

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. The motion may be granted if it appears that a party is entitled to judgment as a matter of law based on the pleadings and matters that may be judicially noticed (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.) The motion may not be supported by extrinsic evidence. (*Barker v. Hull* (1987) 191 Cal.App.3d 221, 236.)

When the moving party is a defendant, he must demonstrate either of the following exist: (1) the court has no jurisdiction on the subject of the cause of action alleged in the complaint; or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(a)(B)(i)-(ii).)

Additionally, a motion for judgment on the pleadings must be accompanied by a meet and confer declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed. (Code Civ. Proc., § 439.) A statutory motion for judgment on the pleadings must be filed thirty days before trial. (Ibid.) Common law motions for judgment on the pleadings are not bound by the deadline or the meet and confer requirement and may be made at any time. (*Sofias v. Bank of America* (1985) 172 Cal.3d 583, 585-586 (timing); Code Civ. Proc. § 439(a) (meet and confer requirement for statutory motions).) There is no fundamental difference between a common law and statutory motion for judgment on the pleadings. (*Cordova v. 21st Century Ins. Co.* (2005) 125 Cal.4th 89, 109.)

Analysis

Procedure

a.

Meet

and Confer

Gleaton's

counsel met and conferred with the Bakers' counsel regarding this motion on June 4, 2026. (Rodriguez Decl., ¶ 6.) The meet and confer requirement is satisfied.

b.

Prior

Demurrer Ruling

A motion

for judgment on the pleadings may be brought where the pleadings have previously been upheld on a general demurrer. (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877 ["if the demurrer was overruled by a different judge, the trial judge is equally free to reexamine the sufficiency of the pleading."].)

On August

9, 2019, Judge Ford overruled the Defendants' demurrer, brought on these grounds and others, finding that the FAC stated a fraud and negligence claim against Plaintiff. Nonetheless, that demurrer was significantly broader than this one, and the Court will address Gleaton's arguments.

Substantive

Arguments

a.

Corporate

Officer Liability for fraud

"The

well-known elements of a cause of action for fraud or concealment are: (1) a misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting

damages.” (Cadlo v. Owens-Illinois, Inc. (2004) 125 Cal.App.4th 513, 519-520.)

Plaintiffs

alleging fraud must describe, with particularity, the specific statements defendants made that constituted fraud, or facts defendants omitted that constitute alleged fraud. Pleadings must allege facts as to “how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73. Accord Wald v. Truspeed Motorcars, LLC (2010) 184 Cal.App.4th 378, 393; Morgan v. AT & T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235, 1262. Cf. also Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th 772, 783 [“conclusory allegations offer no facts at all and it is impossible to determine what was said or by whom or in what manner.”].)

“To maintain a tort claim

against a director in his or her personal capacity, a plaintiff must first show that the director specifically authorized, directed or participated in the allegedly tortious conduct [citation]; or that although they specifically knew or reasonably should have known that some hazardous

condition or activity under their control could injure plaintiff, they negligently failed to take or order appropriate action to avoid the harm [citations]. The plaintiff must also allege and prove that an ordinary prudent person, knowing what the director knew at that time, would not have acted similarly under the circumstances.” (PMC, Inc. v. Kadisha (2000) 78

Cal.App.4th 1368, 1380, quoting Frances T. v. Village Green Owners Assn. (1986) 42 Cal.3d 490, 508-509, italics added.)

The Court

agrees with Judge Ford’s finding that the FAC states a claim against Gleaton for fraud. The FAC alleges that Gleaton made specific misrepresentations at specific times, including that Gleaton would timely deliver cabinetry, closets, doors, appliances, beds, and other furnishings, install those items, and supervise that installation. (FAC, ¶ 18.) The FAC alleges that Gleaton took the Bakers’ money and did not intend to provide the appliances agreed upon. (Id. at ¶ 16.) To establish individual liability, the Bakers allege that they interacted substantially with Gleaton on behalf of Maree, and that she made misrepresentations on behalf of Maree, thereby alleging that she participated substantially in the fraudulent conduct. The Bakers also allege that Gleaton requested additional payments and never delivered the promised materials, and that she

was Maree's only employee and principal. (FAC, ¶¶ 7, 20.) These allegations show that Gleaton was aware of the potential harm to the Bakers. Finally, the FAC alleges that Gleaton took no action to mitigate the harm. (FAC, ¶ 22.) The FAC does not specifically allege that Gleaton did not act as an ordinary prudent person, but that conclusion is easily drawn from the Bakers' factual allegations. For example, the Bakers allege that on January 23, 2018, after paying over \$150,000 for flooring, they instructed Gleaton to order the requested flooring. (FAC, ¶ 12.) The Bakers allege that in April or May 2018, they called Bleaton's vendor about the flooring, and found out that Gleaton had not ordered the flooring. (Ibid.) Gleaton then told the Bakers that the flooring was discontinued, when it actually just required a special order. (Ibid.) The Bakers allege that they have not received most of the flooring. (Ibid.) A reasonable person would not have delayed four months after receiving funds to make an order and then refused to make that order.

The FAC
states a claim for fraud against Gleaton as an individual.

b.
Breach
of Contract

Neither
party contends that the Bakers bring a breach of contract claim against Gleaton in her individual capacity. To the extent that it is necessary, this ruling will confirm that the Bakers' breach of contract claim is only against Maree.

c.
Negligence

A
corporate officer's individual liability for their company's tortious conduct stems from the officer's own conduct if they personally participated in or directed the tortious conduct. Then they may be liable for the corporation's tortious acts. (PMC, Inc. v. Kadisha, supra, 78 Cal.App.4th at 1379.) "In the context of a negligence claim, the Supreme Court has held that, like any other person, "directors individually owe a duty of care, independent of the corporate entity's own duty, to refrain from acting in a manner that creates an unreasonable risk of personal injury to third parties." (Id. at p. 1381, citing Frances T. v. Village Green Owners Assn., supra 42 Cal.3d at 505;

see also *Michaelis v. Benavides* (1998) 61 Cal.App.4th 681, 686 [finding that the principal of a construction company could be individually liable where he personally participated in and directed the defective construction].)

The Court

again agrees with Judge Ford's demurrer ruling. The Bakers' negligence claim incorporates the specific facts set out in paragraphs 1-23, which describe Gleaton as Maree's principle and allege that she directed the allegedly-negligent conduct that forms the basis for the Bakers' negligence claim. For example, the Bakers allege that Defendants negligently failed to deliver and install items that the Bakers paid for. (FAC, ¶ 44.) The Bakers also allege that Gleaton represented that kitchen appliances would be delivered and installed in a timely fashion if the Bakers paid approximately \$15,000. (FAC, ¶ 16.) The Bakers allege that they made the payment, but Defendants did not deliver the products. (*Ibid.*) The allegations in paragraph 16 allege that Gleaton directly participated in an incident that forms the basis for the Bakers' negligence claims.

Conclusion

The

Bakers' Motion for Judgment on the Pleadings is DENIED, except to the extent that the Bakers sought breach of contract liability against Gleaton individually.